

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

PHYLLIS SMALL and DENISE FUBINI,
individually, and on behalf of
others similarly situated,

Plaintiffs,

- against -

LORILLARD TOBACCO COMPANY, INC.,
LORILLARD, INC., LOEWS CORPORATION,
COUNCIL FOR TOBACCO RESEARCH-USA, INC.
(Successor to Tobacco Industry
Research Committee), AND TOBACCO
INSTITUTE, INC.,

Defendants.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

MARY ANN HOSKINS, Executrix of the
Estate of Edwin Paul Hoskins, WALTINA
BROWN and DANTE AUBAIN, individually,
and on behalf of others similarly
situated,

Plaintiffs,

- against -

R.J. REYNOLDS TOBACCO COMPANY,
RJR NABISCO, INC., COUNCIL FOR
TOBACCO RESEARCH-USA, INC.
(Successor to Tobacco Industry
Research Committee), AND TOBACCO
INSTITUTE, INC.,

Defendants.

Copies to

Critical witnesses

Committee

was shown

Index No.
110949/96

Judge Charles
E. Ramos

RENOTICE TO TAKE
VIDEO DEPOSITION

Index No.
110951/96

Judge Charles
E. Ramos

RENOTICE TO TAKE
VIDEO DEPOSITION

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

SHARLENE HOBERMAN and AUDREY HULSE,
as executrix, on behalf of the
Estate of Lewis Hulse,
individually, and on behalf of others
similarly situated,

Plaintiffs,

- against -

BROWN & WILLIAMSON TOBACCO CORPORATION,
B.A.T. INDUSTRIES P.L.C., BATUS, INC.,
BATUS HOLDINGS, INC., COUNCIL FOR
TOBACCO RESEARCH-USA, INC.
(Successor to Tobacco Industry
Research Committee), and TOBACCO
INSTITUTE, INC.,

Defendants.

Index No.
110953/96

Judge Charles
E. Ramos

RENOTICE TO TAKE
VIDEO DEPOSITION

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ROSE FROSINA, ELIZABETH COLAVITO
and ANILDA ROSS, individually, and on
behalf of others similarly situated,

Plaintiffs,

- against -

PHILIP MORRIS, INC., PHILIP MORRIS
COMPANIES, INC., COUNCIL FOR
TOBACCO RESEARCH-USA, INC.
(Successor to Tobacco Industry
Research Committee), AND TOBACCO
INSTITUTE, INC.,

Defendants.

Index No.
110950/96

Judge Charles
E. Ramos

RENOTICE TO TAKE
VIDEO DEPOSITION

videotaped by Michael R. DeCheser of I.V.P, Inc., 45 Rockefeller Plaza, Suite 2265, New York, New York.

The person to be examined is required to produce at least five (5) days before such examination the following: All books, records, computer data and/or discs, correspondence, contracts or agreements, statements, handwritten notes, and other documents, whether maintained on a personal basis or kept in the ordinary course of business, pertinent to:

(a) free nicotine and/or unprotonated nicotine and/or unbound nicotine in tobacco and/or tobacco products and/or tobacco smoke;

(b) the pH and/or alkalinity of tobacco and/or tobacco products and/or tobacco smoke, including but not limited to any effect of the pH and/or alkalinity of tobacco and/or tobacco products and/or tobacco smoke on nicotine and/or nicotine delivery to the smoker;

(c) any method by which the pH and/or alkalinity and/or free nicotine and/or unprotonated nicotine and/or unbound nicotine of tobacco or tobacco products and/or tobacco smoke is or may be increased and/or decreased and/or controlled, including by means that include, but are not limited to, tobacco blending techniques, the use of casing sugars, and the use of alkaline additives like ammonia compounds;

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(d) nicotine delivery from tobacco and/or tobacco products and/or tobacco smoke;

(e) the suspected and/or actual effect(s) of nicotine on any human or animal; and

(f) the addictive and/or reinforcing and/or habit forming and/or habituating and/or dependence producing effect(s) of nicotine.

Dated: New York, New York
December 15, 1997

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